

		insurance claim of “petitioner” Mirwais Azizi (Azizi). The stay is to prevent Azizi from proceeding with any arbitration until the other claim is resolved. Mobilitas, however, has failed to properly serve Azizi so as to concur jurisdiction with the court over Azizi. The only proof of service Mobilitas has served states the motion was served on an attorney who allegedly represents Azizi. There is nothing to show the law office represents Azizi. More importantly, there is nothing to show this law office has authority to accept service on Azizi’s behalf or that Azizi agreed to accept electronic service of the petition. Personal service of the case initiating document, and potentially as summons, generally is required for the court to acquire jurisdiction over a responding party. Mobilitas has failed to provide any evidence or authority to show this court has authority over Azizi so as to make any orders affecting Azizi’s rights. Moreover, Mobilitas has failed to present any evidence to show there is any pending arbitration for the court to stay. A demand for arbitration does not necessarily equate to a pending arbitration. All the court has is the conclusory statement by Mobilitas’s counsel that “Azizi demanded formal arbitration.” That is not sufficient. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. Mobilitas’s counsel is ordered to give notice of this ruling.
9.	Key vs. Delgado 2023-01316546	Before the court is the motion by plaintiff Carol Key (Plaintiff) for an award of attorney fees and costs in the amount of \$71,807.81. As more fully set forth below, the motion is DENIED. This case arises from an allegedly fraudulent deed being recorded in 2011 that gave defendant Dunia Delgado (Defendant) a five percent interest in Plaintiff’s San Clemente property. On November 20, 2025, the court entered a judgment after a court trial in favor of Plaintiff and against Defendant. Pursuant to the judgment, Plaintiff prevailed on the first cause of action for cancellation of written instrument and the third cause of action for quiet title. (ROA 219.) Plaintiff did not prevail on the second cause of action for slander of title or the fourth cause of action for violation of California Penal Code section 496. On a motion for attorney fees, the moving party has the burden to (1) establish entitlement to an award, and (2) document the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) Attorney fees generally are not